

25TRCV02418 25TRCV02418

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-11

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Case Number: 25TRCV02418 Hearing Date: August 11, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

CITY OF

LAWNDALE,

Plaintiffs,

Case No.:

25TRCV02418

vs.

[Tentative]

Granted

730

MERCANTILE LLC, a California limited liability company; MANHATTAN AUTO SERVICE, INC, a California corporation; LUXE AUTO BODYSHOP LLC, a California limited liability company; DOES 1 through 25, inclusive,

Defendants.

Hearing

Date: August 10, 2026

Moving Parties: Plaintiff City of Lawndale

Responding Party: Defendants Manhattan Auto Service, Inc.
and Luxe Auto Bodyshop,

LLC

HEARING: Motion for Preliminary
Injunction

The Court considered the moving,
opposition, and reply papers.

RULING

The
Court grants the Motion for a Preliminary Injunction.

BACKGROUND

On July 22, 2025, Plaintiff City of
Lawndale filed the Complaint against Defendants 730 Mercantile LLC, Manhattan
Auto Service, Inc., and Luxe Auto Bodyshop, LLC, alleging causes of action for
public nuisance, nuisance per se, and declaratory relief.

On February 24, 2026, Plaintiff
filed the Motion for Preliminary Injunction.

On March 30, 2026, Defendants
Manhattan Auto Service, Inc. and Luxe Auto Bodyshop, LLC filed the opposition.

On April 6, 2026, Plaintiff filed
the Reply.

On April 16, 2026 the matter was
argued and taken under submission.

On May 18, 2026, after discussion
with counsel the Court requested additional briefing on the issue of estoppel.

Both parties filed additional points
and authorities which the Court has read and considered.

JUDICIAL NOTICE

The Court may take judicial notice of records
of (1) any court of this state or (2) any court of record of the United States
or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court
may also take judicial notice of "Official acts of the legislative, executive,
and judicial departments of the United States and of any state of the United
States." (Evid. Code § 452 subd. (c).)

Plaintiff requests that the Court
take judicial notice of the existence and contents of the following deeds: (a)
the Grant Deed dated October 10, 2019, and recorded on October 15, 2019, as
document number 20191092089, with the County of Los Angeles, (b) the Grant Deed
dated September 17, 2019, and recorded on September 25, 2019, as document
number 20191003657, with the County of Los Angeles, and (c) the Grant Deed
dated June 3, 2019, and recorded on June 6, 2019, as document number
20190611487, with the County of Los Angeles, the existence and contents of the
Fictitious Business Name Statement filed on June 17, 2019 with the Los Angeles
County Recorder, also known as file number 2019168716, and the Fictitious
Business Name Statement filed on October 4, 2024 with the Los Angeles County
Recorder, also known as file number 2024206902, and Lawndale Municipal Code
sections 1.04.090, 1.08.050, 5.05.020(A), 8.24.040, 17.20.050(A), 17.28.020,
17.36.020, 17.56.010, and 17.56.150.

The Court grants these requests
pursuant to Evidence Code section 452 subdivision (c).

EVIDENTARY OBJECTIONS

Defendant's
objections to the Declaration of Gregory Williams

Sustained:

Overruled: 1, 2, 3, 4,
5, 6, 7

Defendant's
objections to the Declaration of Brandon Sanchez

Sustained:

Overruled: 1, 2, 3, 4,

Defendant's objections to the Declaration of Jose
Hernandez

Sustained:

Overruled: 1, 2, 3, 4,
5, 6, 7, 8, 9, 10, 11, 12

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (Major v. Miraverde Homeowners Ass'n. (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (Code Civ. Pro. § 526 subd. (a).)

DISCUSSION

Plaintiff requests an order to enjoin Defendants from maintaining any violations of the Lawndale Municipal Code and State law with respect to the real property located at 4732–4734 Manhattan Beach Boulevard, Lawndale, California 90260, and identified as Los Angeles County Assessor's Parcel Numbers 4080-001-022, 4080-001-045, and 4080-001-040.

Likelihood of Success

Where a governmental entity seeks to enjoin the alleged violation of an ordinance that specifically provides for injunctive relief, the entity must show a reasonable probability of success on the merits. (See, *IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 72.)

Plaintiff argues that it is entitled to a preliminary injunction because state law and the municipal code authorize injunctive relief to abate a public nuisance. (LMC section 8.24.040 subd (A); Civ. Code. §§ 3491, 3494.) Plaintiff contends it is reasonably probable to prevail because Defendants continue to operate an auto body repair shop without the required special use permit and without a business license, in violation of the municipal code. Because the code declares such violations to be public nuisances, their existence alone establishes a nuisance per se without requiring proof of additional harm. Plaintiff therefore argues the continued violations demonstrate a strong likelihood of success on the merits and justify issuance of a preliminary injunction.

Defendants argue that the injunction should be denied because Plaintiff's claims are barred by waiver, estoppel, and the property's alleged nonconforming use status. Thus, Plaintiff cannot show a likelihood of success on the merits.

First, Defendants contend Plaintiff waived any right to challenge the use of the property. They argue Plaintiff knew an auto body shop had operated at the premises for decades, including since at least 1990, yet waited more than 35 years to bring this action. Defendants further assert that Plaintiff issued business licenses to Defendants and their predecessors, describing the business as auto repair, bodywork, collision

repair, and similar services, and that Plaintiff accepted license fees and a special use permit fee. According to Defendants, this conduct shows Plaintiff knowingly allowed the operation and therefore relinquished the right to enforce the alleged violation.

Second, Defendants argue Plaintiff is equitably estopped from enforcing the ordinance. They claim Plaintiff knew the facts, issued licenses and approvals that indicated the operation was permitted, and Responding Parties relied on that conduct by investing substantial money in the business, including obtaining an SBA loan, purchasing equipment, installing spray booths, obtaining air quality permits, and stocking materials. Defendants contend it would be unjust to allow Plaintiff to now enforce zoning restrictions after inducing reliance.

Third, Defendants argue the business qualifies as a legal nonconforming use. They assert the premises have continuously operated as an auto body shop since at least 1990. Because the use allegedly predates current zoning requirements, Defendants contend it retains protected nonconforming status.

Finally, Defendants argue Plaintiff cannot demonstrate a likelihood of success on the merits because the central dispute, whether the property changed from auto repair to auto body use in 2022 or has operated as an auto body shop for decades, remains unresolved. Defendants maintain that these factual disputes must be resolved at trial, not through a preliminary injunction.

Here, as Defendants are operating without a business license or special operating permit, which is illegal under Lawndale Municipal Code section 17.20.050 and Lawndale Municipal Code section 5.05.020 subdivision (A), the Court finds that Plaintiff has shown a likelihood to succeed on the merits. As for Defendants' equitable estoppel defense, "estoppel will not be invoked against a government agency where it would defeat the effective operation of a policy adopted to protect the public," and zoning has been recognized as a policy adopted to protect the public. (*Pettitt v. City of Fresno* (1973) 34 Cal.App.3d 813 822-823.) Furthermore, as to the waiver defense, Defendant has provided no authority showing that waiver is a defense to zoning enforcement. Lastly, while there are factual disputes regarding Defendant's nonconforming use defense, including how long the shop has been operating as a body shop, a party seeking a preliminary injunction

need only show a reasonable probability of success, and the Court finds that the likelihood of Defendant's affirmative defense being successful is not so great as to preclude Plaintiff from showing a reasonable probability of success on the merits.

Therefore, the Court finds that Plaintiff has shown a likelihood of success on the merits.

Irreparable Harm

"To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits." (Costa Mesa City Employees' Assn. v. City of Costa Mesa (2012) 209 Cal.App.4th 298, 305.) "Irreparable injuries [are] ones that cannot be adequately compensated in damages." (San Miguel Community Assn. v. State Farm General Ins. Co. (2013) 220 Cal.App.4th 798, 809.)

Plaintiff argues that a preliminary injunction should be issued because a plaintiff seeking to enjoin a nuisance is not required to prove irreparable injury. (See L.A. Brick etc. Co. v. City of Los Angeles (1943) 60 Cal.App.2d 478, 486.)

Plaintiff contends that when a nuisance injunction is sought, courts presume that the harm to the public outweighs any harm to the defendant unless the defendant can demonstrate grave or irreparable injury.

Plaintiff further argues that the only harm Defendants would suffer from complying with the law is economic loss, such as lost profits resulting from ceasing the unlawful activity. Plaintiff asserts that financial harm does not constitute grave or irreparable injury and therefore cannot overcome the presumption of public harm caused by the continued nuisance. (City of Los Altos v. Barnes (1992) 3 Cal.App.4th 1193, 1198-1199.)

Finally, Plaintiff emphasizes that the requested injunction would not interfere with Defendants' ownership or tenancy of the property and would not prevent lawful uses of the property. Instead, the injunction would simply require Defendants to bring their activities into compliance with applicable municipal law, as all other property owners do.

In opposition, Defendants argue that the Court should deny the preliminary injunction because it would cause severe and irreparable harm to Responding Parties while providing little or no benefit to Plaintiff.

First, Defendants contend the injunction would force Responding Parties out of business, leading to employee layoffs and breaches of SBA loan agreements, lease obligations, and auto body repair contracts. They argue that this economic and operational disruption constitutes substantial harm that outweighs any alleged harm to Plaintiff.

Second, Defendants argue that courts must balance the relative harms when deciding whether to grant a preliminary injunction and should preserve the status quo until the merits are resolved. According to Defendants, courts should deny injunctive relief when the defendant would suffer greater injury from the injunction than the plaintiff would from its denial, particularly where the injunction would effectively grant the plaintiff the ultimate relief sought before trial.

“Where a governmental entity seeking to enjoin the alleged violation of an ordinance which specifically provides for injunctive relief establishes that it is reasonably probable it will prevail on the merits, a rebuttable presumption arises that the potential harm to the public outweighs the potential harm to the defendant. If the defendant shows that it would suffer grave or irreparable harm from the issuance of the preliminary injunction, the court must then examine the relative actual harms to the parties.” (IT Corp, *supra*, 35 Cal.3d 63, 72.)

Defendants argue that granting the preliminary injunction would cause them to go out of business, lay off employees, and default on obligations. However, the Court has consistently held that substantial economic harm is not an irreparable injury. (See, IT Corp, *supra*, 35 Cal.3d 63, 75.) Furthermore, “a party suffers no grave or irreparable harm by being prohibited from violating the law.” (People v. Uber Technologies, Inc. (2020) 56 Cal.App.5th 266, 323.) Thus, the Court finds that Defendants have not overcome their burden of showing irreparable harm.

Therefore, the Court grants the Motion for a Preliminary Injunction.